

2:00 PM

LINE: 7

25-CIV-05899

PHILIPPOS GRATSINOPOULOS, ET AL VS. FRANK RAMIREZ, ET AL

PHILIPPOS GRATSINOPOULOS
FRANK RAMIREZ

MARCIA A. WALLIS
CANDICE S. NAM

DEFENDANTS FRANK RAMIREZ AND FRANK RAMIREZ INSURANCE AGENCY, INC.'S MOTION TO STRIKE FIRST
AMENDED COMPLAINT

TENTATIVE RULING:

Defendants Frank Ramirez and Frank Ramirez Insurance Agency's Motion to Strike portions of Plaintiff's First Amended Complaint is **GRANTED IN PART** as to paragraph 156, subparagraphs (f), (m), and (n), and paragraphs 157 through 158, as to the Ramirez Defendants only, pursuant to Code of Civil Procedure sections 435 and 436. The remainder of the Motion to Strike is **MOOT** in light of the Court's tentative ruling sustaining the moving Defendants' demurrer to Plaintiff's First Amended Complaint.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Ramirez Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 8

25-CIV-09212

BANDEL CARANO VS. FMA BUILDERS

BANDEL L. CARANO
FMA BUILDERS

WILLIAM R GARRETT
DAVID DAVIDSON

DEFENDANT/CROSS COMPLAINANT FMA BUILDERS' MOTION TO DEEM CASE COMPLEX AND STAY ALL DISCOVERY PENDING ENTRY OF CASE MANAGEMENT ORDER PURSUANT TO CALIFORNIA RULES OF COURT, RULE 3.400(a)-(c); THE STANDARDS OF JUDICIAL ADMINISTRATION 3.10; CALIFORNIA CODE OF CIVIL PROCEDURE 187, 128 AND 2017.020 and SMC Local Rule 3.300

TENTATIVE RULING:

For the reasons stated below, the motion is **GRANTED IN PART** and **DENIED IN PART**. The request to deem the case complex is **MOOT** because the action has already been deemed complex and assigned to this department pursuant to San Mateo County Local Rule 3.300. The Court has issued Case Management Order No. 1 and will not enter a competing case management order proposed by either side.

The request for a temporary stay of discovery is **GRANTED**. All discovery that has been propounded to date is stayed, and the time to respond to that discovery is tolled, pending appointment of the special master and completion of a meet and confer process before the special master regarding how discovery should proceed under Case Management Order No. 1. No additional party discovery shall be propounded during the stay absent agreement of the parties or further court order.

The request to appoint Robert A. Bellagamba as special master is **GRANTED IN PRINCIPLE**, subject to submission of a proposed order defining the scope of reference, compensation, interim allocation of fees, reporting procedure, objection procedure, and any separate mediation role. After the special master is appointed, the parties shall promptly meet and confer with the special master regarding discovery procedures, including the sequencing of written discovery, document production, inspections, depositions, expert discovery, discovery involving newly added parties, and any discovery issues not specifically addressed by Case Management Order No. 1. Any supplemental procedures must be consistent with Case Management Order No. 1 unless otherwise ordered by the Court.

If the parties agree on supplemental discovery procedures, they shall submit a stipulated supplemental case management order or discovery protocol. If they cannot agree, the special master may make recommendations to the Court consistent with the order of reference and Case Management Order No. 1.

The Court does not decide at this time whether mediation fees, mediator fees, or special-master fees may be recovered by any party as costs, attorney fees, or otherwise after judgment or other disposition. That issue is premature and is preserved for any later properly noticed cost or fee proceeding. Any interim allocation or payment of such fees is without prejudice to any party's right to seek recovery, or to oppose recovery, after judgment or other disposition.